

Chapter 650

PARK RULES AND REGULATIONS

§ 650-1.	Prohibited activities.	§ 650-2.	Regulated activities.
		§ 650-3.	Violations and penalties.

[HISTORY: Adopted by the County Council of Allegheny County 3-21-2006 by Ord. No. 06-06.¹ Amendments noted where applicable.]

GENERAL REFERENCES

Public art — See Ch. 207.

Smoking in parks — See Ch. 660.

Council of Friends advisory councils — See Ch. 215, Art. III.

Use of County parks — See Ch. 675.

§ 650-1. Prohibited activities.

The below-listed activities are specifically prohibited in any area lying within a County park. Exceptions to these prohibitions will be recognized only upon possession and presentation of a written authorization signed by the Director of the Parks Department, by signs posted by authorized representatives of the Director, or by immediate direction of a County police officer.

A. Motor vehicles. [Amended 7-1-2014 by Ord. No. 08-14]

- (1) Driving or parking on grass areas or trails;
- (2) Parking at any place where official signs prohibit parking;
- (3) Washing, greasing, lubricating, or repairing;
- (4) Landing any aircraft for any non-emergency purpose;
- (5) Operating any motorized conveyance including but not limited to snowmobiles, motor boats, all-terrain vehicles, motorcycles, or motor scooters except that street licensed vehicles may be used in parking lots, or roads open to traffic.

B. Shrubs, flowers, trees, grass, turf, soil or rock formations.

- (1) Picking, cutting, breaking, digging, defacing or injuring in any way.

C. Buildings, structures or park facilities.

- (1) Damaging, defacing or misusing in any way.

D. Waste paper, garbage and refuse.

- (1) Scattering or depositing except in appropriate receptacles.

1. Editor's Note: This ordinance also repealed former Ch. 650, Park Rules and Regulations, adopted by the Board of County Commissioners 12-29-1976, as amended.

- (2) Failing to clean up and place all picnic waste paper, garbage and refuse in receptacles provided for that purpose.
 - (3) Depositing in park receptacles waste paper, garbage or refuse except for that generated in the park by normal or permitted park activities such as picnicking.
- E. Animals, birds and fish.
 - (1) Except as specifically authorized by the Parks Department, molesting, trapping, hunting, capturing, killing or injuring any bird or mammal.
 - (2) Abandoning animals or birds within the park.
- F. Lakes, streams and fountains.
 - (1) Wading, swimming or diving.
 - (2) Discharging of any type of waste or toxic materials into, or otherwise contaminating, any lake, stream or fountain.
- G. Advertising.
 - (1) Posting or distributing any notice signs, advertisements or handbills.
 - (2) Posting regarding permitted park activities may be authorized by the Parks Department or by permit but must be removed by sunset of each day.
- H. Weapons and explosives.
 - (1) Discharge of any firearm or weapon, including but not limited to handguns, rifles, shotguns, crossbow, bow and arrow, air rifle or pistol, any device firing a projectile by compressed gas or spring, such as paintball devices, or as otherwise specifically allowed by permit issued by the Parks Department.
 - (2) Brandishing of a firearm or weapon, including but not limited to handguns, rifles, shotguns, crossbow, bow and arrow, air rifle or pistol, any device firing a projectile by compressed gas or spring, such as paintball devices, except as otherwise specifically allowed by permit issued by the Parks Department. Firearms may be transported through the park if kept in a car trunk, enclosed in a case, or otherwise inaccessible to use. Nothing contained herein shall prohibit any person licensed under the Pennsylvania Uniform Firearms Act, 18 P.S. § 6109, from possession of a firearm as defined in the Pennsylvania Uniform Firearms Act, 18 P.S. § 6102.
- I. Merchandising.
 - (1) Offering, distributing, supplying, renting or selling any literature, commodity, article, material, equipment, service or supply, except by those doing so pursuant to § 650-2D and E.
- J. Noise.
 - (1) Using electrical amplifying equipment.
- K. Alcoholic beverages.
 - (1) All alcoholic beverages in glass containers.
 - (2) Possession of an alcoholic beverage in an open container or consumption of alcoholic beverages

in areas other than buildings or groves where a permit has been issued under the provisions of § 650-2J.

L. Bottled beverages.

- (1) All glass containers.

§ 650-2. Regulated activities. [Amended 9-18-2012 by Ord. No. 28-12]

The below-listed activities are permitted in any area lying within a County park but are subject to the regulations indicated herein and those conspicuously posted in the appropriate area.

A. Picnicking, swimming, tennis, golf, skating, bicycling, skiing, sledding, baseball, softball, basketball, soccer, football, boating, fishing, horseback riding, horseshoe pitching, model powered aircraft flying, rollerblading, skateboarding and related and similar forms of recreation are permitted only in areas designed for such use, and in no case shall such use be permitted in areas where park facilities or areas may be damaged.

B. Fires.

- (1) Fires are permitted only in stoves, fireplaces, grills or similar designated areas and facilities and must be thoroughly extinguished before leaving the area;
- (2) Matches, cigars, cigarettes, charcoal, and all flammable materials must be thoroughly extinguished before being disposed of in accordance with the provisions of § 650-1D;
- (3) Smoking shall be prohibited in any area of the park designated by the Director of the Allegheny Parks Department and containing signage clearly delineating the extent of the prohibition. Regardless of the existence or extent of any such designations by the Director, smoking shall in all instances be prohibited, within 25 feet of any designated playground area or portion thereof. For the purposes of this subsection, distances shall be measured in a straight line from any individual who is smoking to the playground paving, apron, rubberized fall material or piece of recreational equipment nearest to that individual.
- (4) For the purposes of this subsection a "designated playground area" shall mean specific area meeting any of the following characteristics:
 - (a) An area having a rubberized fall material located on its surface or floor; or
 - (b) An area designated as a playground, skate park or splash park by official County signage; or
 - (c) A site containing one or more pieces of recreational equipment specifically designed for use by children, including but not limited to swing sets, sliding boards, waterfalls or sprinklers, physical features or other objects specifically designed or placed for use as part of a skate park, and exercise bars.

C. Animals.

- (1) Domestic animals are permitted only when on a leash, except in designated off-leash dog areas;
- (2) Horses are permitted only on designated horse trails and roads.

D. Sale of food and refreshments.

- (1) Food and refreshments may be sold only by concessionaires approved by the Parks Department and may only be sold pursuant to the provisions of their respective concession agreements;
 - (2) If food and refreshment concessionaires are unwilling to provide such service at special events, the holders of the appropriate permits may provide refreshments to the public subject to approval and conditions imposed by the Director of the Parks Department.
- E. Charging admission for permit areas and buildings. The holders of permits for special-use areas who are engaged in a non-profit-making enterprise may charge the public for admission to an event. Such a charge is subject to the approval of the Director at least one week prior to the date of the permit.
- F. Public gatherings. Meetings, assemblies, parades or related forms of public gatherings will be permitted upon possession and presentation of a written authorization signed by the Director of the Parks Department.
- G. Use of permit facilities. Permits are required to reserve buildings, shelters, groves, athletic fields and other facilities.
- H. Fishing. Fishing, as regulated by the Pennsylvania Fish Commission, is permitted between the hours of sunrise and midnight at designated areas within North Park and from 8:00 a.m. to sundown at designated areas within Deer Lakes Park.
- I. Park hours. At North and South Parks, the park hours are from sunrise to midnight. At all other parks, the park hours are from 8:00 a.m. to sundown.
- J. Alcoholic beverages. Consumption of alcoholic beverages shall be limited to groves and buildings where a permit has been issued.

§ 650-3. Violations and penalties. [Amended 7-1-2014 by Ord. No. 08-14]

A. Penalties.

- (1) Violation of prohibited activities — motor vehicles. Any person who violates or fails to comply with Subsection A(1) or (2) of § 650-1, concerning prohibited activities in the parks involving motor vehicles, shall receive a parking ticket in the amount of \$50 to be paid within seven calendar days of the issuance of the ticket. Failure to pay the ticket within the seven-day time period will result in the issuance of a citation in accordance with the Pennsylvania Rules of Criminal Procedure. Upon conviction, the violator shall be guilty of a summary offense, and shall be subject to a fine of not less than \$100, nor more than \$300, and costs equivalent to the costs established by the governing authority as provided in the Judiciary Code, 42 Pa.C.S.A. § 1725.1.
 - (2) Other violations of parks rules and regulations. Any person who violates or fails to comply with Subsection A(3), (4) or (5) of § 650-1, concerning prohibited activities in the parks involving motor vehicles, shall receive a citation in accordance with the Pennsylvania Rules of Criminal Procedure and upon conviction, shall be guilty of a summary offense, and shall be subject to a fine of not less than \$100, nor more than \$300, plus costs equivalent to the costs for summary offenses established by the governing authority as provided in the Judiciary Code, 42 Pa.C.S.A. § 1715.1.
- B. Revocation of permits. Should any holder of a permit issued by the Director of the Parks Department under the provisions of these regulations be convicted of violating any provision of this section, such conviction shall be cause for revocation of any current permits. The Director of the Parks Department

may, at his or her discretion, also consider such convictions when evaluating applications for future permits.

- C. Separate offense. Each violation hereunder shall constitute a separate offense, subject to the penalties provided in Subsections A and B of this section.